



|                   |
|-------------------|
| Court File Number |
|-------------------|

\_\_\_\_\_ (Name of court)  
 at \_\_\_\_\_  
 Court office address

**Form 34N: Application to  
Change or Terminate  
Openness Order**

**Applicant(s)**

|                                                                                                                                          |
|------------------------------------------------------------------------------------------------------------------------------------------|
| Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any). |
|                                                                                                                                          |

|                                                                                                                            |
|----------------------------------------------------------------------------------------------------------------------------|
| Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any). |
|                                                                                                                            |

**Respondent(s)**

|                                                                                                                                          |
|------------------------------------------------------------------------------------------------------------------------------------------|
| Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any). |
|                                                                                                                                          |

|                                                                                                                            |
|----------------------------------------------------------------------------------------------------------------------------|
| Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any). |
|                                                                                                                            |

**Children's Lawyer**

|                                                                                                                                                                                           |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Name & address of Children's Lawyer's agent for service (street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any)) and name of person represented. |
|                                                                                                                                                                                           |

**TO THE RESPONDENT(S):**

**A COURT CASE HAS BEEN STARTED AGAINST YOU IN THIS COURT. THE DETAILS ARE SET OUT ON THE ATTACHED PAGES.**

**THE FIRST COURT DATE IS** (date) \_\_\_\_\_ **AT** \_\_\_\_\_ ☐ a.m. ☐ p.m.  
 or as soon as possible after that time, at: (address)

If you have also been served with a notice of motion, there may be an earlier court date, and you or your lawyer should come to court for the motion.

**IF YOU WANT TO OPPOSE ANY CLAIM IN THIS CASE**, you or your lawyer must prepare an Answer (*Child, Youth and Family Services Act, 2017* Cases other than Child Protection and Status Review) (Form 33B.2 – a blank copy should be attached), serve a copy on the children's aid society and all other parties and file a copy in the court office with an Affidavit of Service (Form 6B).

**YOU HAVE ONLY 30 DAYS AFTER THIS APPLICATION IS SERVED ON YOU (60 DAYS IF THIS APPLICATION IS SERVED ON YOU OUTSIDE CANADA OR THE UNITED STATES) TO SERVE AND FILE AN ANSWER. IF YOU DO NOT, THE CASE WILL GO AHEAD WITHOUT YOU AND THE COURT MAY MAKE AN ORDER AND ENFORCE IT AGAINST YOU.**

**You should consider getting legal advice about this case right away.** If you cannot afford a lawyer, you may be able to get help from your local legal aid office. (See your telephone directory under **LEGAL AID**.)

\_\_\_\_\_  
 Date of issue

\_\_\_\_\_  
 Clerk of the court

**THE CHILD**

| Child's Full Legal name | Birthdate | Age | Sex | Date of Extended<br>Society Care Order<br><i>(if pre-adoption application<br/>under s. 198 of the Child,<br/>Youth and Family<br/>Services Act, 2017)</i> | Date of Adoption<br>Order<br><i>(if post-adoption application<br/>under s. 207 of the Child,<br/>Youth and Family Services<br/>Act, 2017)</i> |
|-------------------------|-----------|-----|-----|-----------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
|                         |           |     |     |                                                                                                                                                           |                                                                                                                                               |

**Details of Openness Order to be Changed or Terminated:**

| Name of Judge | Date of Order | Details of Openness Order |
|---------------|---------------|---------------------------|
|               |               |                           |

**1.** The applicant asks for an order: *(if applicable)*

- ☐ granting permission under s. 207(2) of the *Child, Youth and Family Services Act, 2017* to *(name of person seeking contact)*

\_\_\_\_\_ to bring an application to change the order of  
Justice *(name of judge)* \_\_\_\_\_,  
dated *(date of order)* \_\_\_\_\_ for the following reasons:

**2.** The applicant asks for an order that:

- ☐ (a) the order, made by Justice *(name of judge)* \_\_\_\_\_  
on *(date of order)* \_\_\_\_\_ be changed as follows:

OR

- ☐ (b) the order, made by Justice *(name of judge)* \_\_\_\_\_  
on *(date of order)* \_\_\_\_\_ be terminated.

---

**3.** The following circumstances have changed:

**4.** The proposed order is in the best interests of the child for the following reasons:

**5.** If you are seeking to change (not terminate) an openness order:

- ☐ (a) In the case of an openness order made under s. 194 or s. 196 of the *Child, Youth and Family Services Act, 2017*, the proposed change to the openness order would continue a relationship that is beneficial and meaningful to the child for the following reasons:

- ☐ (b) in the case of an openness order made under s. 197 of the *Child, Youth and Family Services Act, 2017*, the proposed change to the openness order would help the child to develop or maintain a connection with the child's First Nations, Inuit or Métis cultures, heritages and traditions and preserve the child's cultural identity and connection to community for the following reasons:

6. If you are seeking to terminate (not change) an openness order made under s. 194 or 196 of the *Child, Youth and Family Services Act, 2017*, the proposed termination of the openness order would terminate a relationship that is no longer beneficial and meaningful to the child for the following reasons:

*Put a line through any blank space left on this page.*

*Date of signature*

*Signature*

*If applicant is a children's aid society,  
give office or position of person signing.*

*Print or type name*